

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

TERRANCE BURGESS, ALFRED CROOKS, SHACORE HUFF,
and DARYL MOORE,**SUMMONS TO THE
VERIFIED COMPLAINT**

Plaintiffs,

-against-

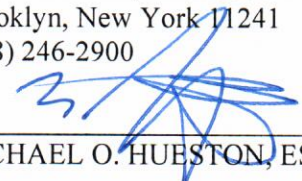
Index:THE CITY OF NEW YORK; SGT. SHIBU MADHU; P.O.
VINCENT GAMBINO, Shield # 31824; P.O. DAVID GRIECO,
Shield # 18061; and P.O. JOHN DOES # 1-10, the individual
defendants sued individually and in their official capacities,Basis of Venue: occurrence of
incident – 245 Wortman Avenue,
Apt. # 4E, Brooklyn, New York

Defendants.

----- X

To the above named defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within twenty days after service of this summons exclusive of the day of service where service is made by delivery upon you personally within the state, or within thirty days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: Brooklyn, New York
December 28, 2016MICHAEL O. HUESTON, ESQ.
ANDREW S. RENDEIRO, ESQ.
Attorneys for Plaintiffs
16 Court Street, Suite 3301
Brooklyn, New York 11241
(718) 246-2900By: 

MICHAEL O. HUESTON, ESQ.

Defendants' addresses: THE CITY OF NEW YORK, 100 Church Street, New York, New York 10007; and P. SGT. SHIBU MADHU; P.O. VINCENT GAMBINO, Shield # 31824; P.O. DAVID GRIECO, Shield # 18061; and P.O. JOHN DOES # 1-10, 75th Precinct, 1000 Sutter Ave, Brooklyn, NY 11208 and/or Patrol Borough Brooklyn North, 79 Wilson Ave, Brooklyn, New York 11237

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE KINGS

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TERRANCE BURGESS, ALFRED CROOKS, SHACORE
HUFF, and DARYL MOORE,

VERIFIED COMPLAINT

Plaintiffs,

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-against-

THE CITY OF NEW YORK; SGT. SHIBU MADHU; P.O.
VINCENT GAMBINO, Shield # 31824; P.O. DAVID
GRIECO, Shield # 18061; and P.O. JOHN DOES # 1-10,
the individual defendants sued individually and in their
official capacities,

Basis of Venue: occurrence of incident
– 245 Wortman Avenue, Apt. # 4E,
Brooklyn, New York

Jury Trial Demanded

Defendants.
-----X

Plaintiffs Terrance Burgess, Alfred Crooks, Shacore Huff, and Daryl Moore, by
and through their counsel, Michael O. Hueston, Esq., and Andrew S. Rendiero, Esq., upon
information and belief, allege as follows:

PRELIMINARY STATEMENT

1. This is a civil rights, common law, and tort action in which plaintiffs seeks
relief for the violation of plaintiffs' rights secured by 42 U.S.C. § 1983; and the Fourth, Fifth,
Sixth, and Fourteenth Amendments to the United States Constitution; and the laws of the State of
New York. Plaintiffs' claims arise from an incident that arose on or about October 6, 2015
through June 22, 2016. During the incident, the City of New York, and members of the New
York City Police Department ("NYPD") subjected plaintiffs to, among other things: unlawful
search and seizure; false arrest; assault; battery; unreasonable force; failure to intervene;
conspiracy; denial of a fair trial; malicious prosecution; implementation and continuation of an
unlawful municipal policy, practice, and custom; conversion/trespass of chattels; and respondeat

superior liability. Plaintiffs seek compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees, pursuant 42 U.S.C. § 1988, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

2. Within 90 days of the incidents alleged in this complaint, plaintiffs served upon defendant City of New York Notices of Claim setting forth the name and post office address of plaintiffs, the nature of the claims, the time when, the place where and the manner in which the claims arose, and the items of damages or injuries claimed.

3. More than 30 days have elapsed since plaintiffs' demands and/or claims were presented to defendant City of New York for adjustment and/or payment thereof, and the defendant has neglected and/or refused to make any adjustment and/or payment.

4. Defendant City of New York has not requested a physical examination of Plaintiffs. Except for plaintiff Shacore Huff, whose 50-H hearing is scheduled to occur on January 9, 2017 (in response to his supplemental notice of claim), plaintiffs have participated in 50-H hearings. Plaintiffs have satisfied all conditions precedent for the filing of this action. This action is being commenced within one year and ninety days of the date of the occurrences herein.

5. Venue is proper in the Supreme Court of the State New York, Kings County, because the acts in question occurred in the State of New York, Kings County, and the City of New York and individual defendants are subject to personal jurisdiction in Supreme Court of the State New York, Kings County; and jurisdiction is proper because the Supreme Court of the State New York, Kings County has jurisdiction over plaintiffs' state law causes of actions, and plaintiffs' federal causes of action pursuant to 42 U.S.C. § 1983.

PARTIES

6. Plaintiff Terrance Burgess is a resident of the State of New York, Kings County, living at 155 Wortman Avenue, Apt. 7C, Brooklyn, New York 11207.

7. Plaintiff Alfred Crooks is a resident of the State of New York, Kings County, living at 615 Ashford Street, Brooklyn, New York 11207.

8. Plaintiff Shacore Huff is a resident of the State of New York, Kings County, living at 570 Belmont Avenue, Apt 3B, Brooklyn, New York 11207.

9. Plaintiff Daryl Moore is a resident of the State of New York, Kings County, living at 250 Wortman Avenue, Apt. 2G, Brooklyn, New York 11207.

10. At all times herein, defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiffs' rights as described herein.

11. At all times relevant, defendant City of New York maintained a police department known as the NYPD, which employed the individual defendants.

12. At all times alleged herein, defendants Sgt. Shibu Madhu; P.O. Vincent Gambino, Shield # 31824; P.O. David Grieco, Shield # 18061; and P.O. John Does # 1-10 were employed as police officers with 75th Precinct and/or Patrol Borough Brooklyn North, located in Kings County, New York, or other as yet unknown NYPD assignment, who violated plaintiffs' rights as described herein.

13. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

Incident

14. On October 6, 2015, several police officers operating from the 75th Precinct and/or Patrol Borough Brooklyn North, located in Kings County, New York, including upon information and belief, the individual defendants Sgt. Shibu Madhu; P.O. Vincent Gambino, Shield # 31824; P.O. David Grieco, Shield # 18061; and P.O. John Does # 1-10 (“the police”), at times acting in concert and at times acting independently, committed the following illegal acts against plaintiffs.

15. On October 6, 2015 at approximately 10:00 p.m. to 10:30 p.m. at and in the vicinity of 245 Wortman Avenue, Apt. # 4E, Brooklyn, New York, the police without either consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiffs had committed a crime unlawfully arrested plaintiffs.

16. 245 Wortman Avenue, Apt. # 4E, Brooklyn, New York (“the apartment”) is a residential apartment.

17. Plaintiffs were visitors in the apartment.

18. Plaintiffs were socializing in the apartment.

19. The police entered the apartment without a warrant.

20. The police forced their way into the apartment.

21. Upon information and belief, the police were looking for an individual other than plaintiffs.

22. Once the police entered the apartment, plaintiffs were not free to disregard the defendants’ questions, walk away or leave the scene.

23. The police pointed firearms at plaintiffs.

24. The police took plaintiffs and other individuals into the hallway outside the apartment.

25. The police lined up plaintiffs and other individuals in the hallway and searched them.

26. The police found no contraband on plaintiffs.

27. The police manhandled plaintiffs and the other individuals.

28. The police handcuffed plaintiffs and other individuals.

29. The handcuffs were excessively tight.

30. The police were abusive and rude to the plaintiffs.

31. The police found no basis to arrest to plaintiffs.

32. Nevertheless, the police transported plaintiffs to the 75th Precinct where their arrests were processed.

33. The police transported plaintiffs to Brooklyn Central Booking for arraignment.

34. The police took plaintiffs personal property, including United States currency, phones, keys, and identification.

35. Upon information and belief, in order to cover up their illegal actions, the police, pursuant to a conspiracy, initiated by police reports, false sworn complaint(s) and/or conversations, falsely and maliciously told the Kings County District Attorney's Office that plaintiffs had committed various crimes, and the District Attorney prosecuted plaintiffs for unlawful possession of marijuana.

36. At arraignment, plaintiffs were released on their own recognizance.

37. The police obtained a warrant to search the apartment on October 7, 2015 (after plaintiffs' arrest), on the basis of extremely unreliable information, the unreliability of which was withheld from the issuing magistrate.

38. Plaintiffs' cases were dismissed in their entirety on June 22, 2016, terminating in their favor, after the Kings County Criminal Court found there was an insufficient basis for their arrest and prosecution.

39. Plaintiffs were humiliated and embarrassed by the experience.

40. Plaintiffs suffered physical injuries.

41. Plaintiffs suffered financial loss.

General Allegations

42. Plaintiffs did not resist arrest at any time during the above-described incidents.

43. Plaintiffs did not violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above-described incident.

44. The individual defendants did not observe plaintiffs violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above-described incident.

45. The individual defendants acted under pretense and color of state law and their individual and official capacities and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiffs of their rights.

46. As a direct and proximate result of defendants' actions, plaintiffs experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy,

psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

47. Plaintiffs are entitled to receive punitive damages from the individual defendants because the individual defendants' actions were motivated by extreme recklessness and indifference to plaintiffs' rights.

FIRST CLAIM

(UNLAWFUL SEARCH AND SEIZURE UNDER FEDERAL LAW)

48. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

49. Defendants unlawfully searched and seized plaintiffs without a lawful warrant, cause, consent, and/or beyond the scope of any warrant.

50. Accordingly, defendants are liable to plaintiffs for unlawful search and seizure under 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

SECOND CLAIM

(UNLAWFUL SEARCH AND SEIZURE UNDER STATE LAW)

51. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

52. Defendants unlawfully searched and seized plaintiffs without a lawful warrant, cause, consent, and/or beyond the scope of any warrant.

53. Accordingly, defendants are liable to plaintiffs for unlawful search and seizure under New York State law.

THIRD CLAIM

(FALSE ARREST UNDER FEDERAL LAW)

54. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

55. Defendants falsely arrested plaintiffs without consent, an arrest warrant, probable cause, or reasonable suspicion that plaintiffs had committed a crime.

56. Accordingly, defendants are liable to plaintiffs for false arrest under 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

FOURTH CLAIM

(FALSE ARREST UNDER STATE LAW)

57. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

58. Defendants falsely arrested plaintiffs without consent, an arrest warrant, probable cause, or reasonable suspicion that plaintiffs had committed a crime.

59. Accordingly, defendants are liable to plaintiffs for false arrest under New York State law.

FIFTH CLAIM

(UNREASONABLE FORCE)

60. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

61. The individual defendants' use of force upon plaintiffs was objectively unreasonable.

62. The individual defendant officers did not have an objective and/or reasonable basis to use any degree of force against plaintiffs.

63. Those defendants who did not touch plaintiffs, witnessed these acts, but failed to intervene and protect plaintiffs from this conduct.

64. Accordingly, the defendants are liable to plaintiffs for using unreasonable force, pursuant to 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

SIXTH CLAIM

(ASSAULT)

65. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

66. Among other things as described above, individual defendants' battery, false arrest, and unreasonable use of force against plaintiffs placed them in fear of imminent harmful and offensive physical contacts.

67. Accordingly, defendants are liable to plaintiffs under New York State law for assault.

SEVENTH CLAIM

(BATTERY)

68. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

69. Among other things as described above, the individual defendants' false arrest, and use of force against plaintiffs were illegal physical contacts.

70. Accordingly, defendants are liable to plaintiffs under New York State law for battery.

EIGHTH CLAIM

(FAILURE TO INTERVENE)

71. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

72. Defendants had a reasonable opportunity to prevent the violations of plaintiffs' constitutional rights, but they failed to intervene.

73. Accordingly, the defendants are liable to plaintiffs for failing to intervene to prevent the violation of plaintiffs' constitutional rights under 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

NINTH CLAIM

(CONSPIRACY)

74. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

75. Defendants are liable to plaintiffs because they agreed to act in concert to inflict an unconstitutional injury; and committed an overt act done in furtherance of that goal causing damage to plaintiffs under 42 U.S.C. § 1983.

TENTH CLAIM

(DENIAL OF A FAIR TRIAL)

76. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

77. The individual defendants are liable to plaintiffs because they intentionally conspired to fabricate evidence against plaintiffs, including omitting and/or manipulating evidence, and suppressing exculpatory evidence and forwarded that false evidence to police officers, prosecutors, and the court.

78. The individual defendants violated the law by either testifying falsely, providing false information, and/or drafting and signing false criminal court complaints and/or false police reports and forwarding them to police officers, prosecutors and the court.

79. The individual defendants were on notice that creating fabricated evidence is a clear violation of law because it is well established that individuals who knowingly use false evidence to obtain a conviction act unconstitutionally, depriving plaintiffs of liberty without due process of law or a fair trial, and the harm occasioned by such unconscionable actions are redressable in an action for damages under 42 U.S.C. § 1983, the Fair Trial Clause of the Sixth Amendment to the United States Constitution, and the Due Process Clause of the Fourteenth Amendment to the United States Constitution.

ELEVENTH CLAIM

(MALICIOUS PROSECUTION STATE LAW)

80. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

81. The individual defendants are liable to plaintiffs for malicious prosecution because, pursuant to a conspiracy and acting with malice, the defendants initiated a malicious prosecution(s) against plaintiffs by knowingly, intentionally, and maliciously providing false statements in complaints and police reports to police officers, prosecutors and/or the court(s), which alleged plaintiffs had committed various crimes.

82. The individual defendants lacked probable cause to believe the above-stated malicious prosecution could succeed.

83. The individual defendants initiated the above-stated malicious prosecution in retaliation and to cover up their illegal and unconstitutional conduct.

84. The above-stated malicious prosecution caused a sufficient post-arraignment liberty restraint on plaintiff.

TWELFTH CLAIM

(MALICIOUS PROSECUTION STATE LAW)

85. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

86. The individual defendants are liable to plaintiffs for malicious prosecution because, pursuant to a conspiracy and acting with malice, the defendants initiated a malicious prosecution(s) against plaintiffs by knowingly, intentionally, and maliciously providing false statements in complaints and police reports to police officers, prosecutors and/or the court(s), which alleged plaintiffs had committed various crimes.

87. The individual defendants lacked probable cause to believe the above-stated malicious prosecution could succeed.

88. The individual defendants initiated the above-stated malicious prosecution in retaliation and to cover up their illegal and unconstitutional conduct.

THIRTEENTH CLAIM

(MONELL CLAIM)

89. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

90. Defendant City of New York, through a policy, practice and custom, directly caused the constitutional violations suffered by plaintiffs.

91. Defendant City of New York through the NYPD and its officers, committed the following unconstitutional practices, customs and policies against plaintiffs: (1) improperly entering premises; (2) unlawfully obtaining and executing warrants; (3) arresting innocent persons in order to meet productivity goals and without cause; (4) using unreasonable force on individuals; and (5) fabricating evidence against innocent persons.

92. Upon information and belief, defendant City of New York, at all relevant times, was aware that the defendants were unfit officers who have previously committed the acts alleged herein, have a propensity for unconstitutional conduct, or have been inadequately trained.

93. Nevertheless, defendant City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the individual defendants and improperly retained and utilized them. Moreover, upon information and belief, defendant City of New York failed to adequately investigate prior complaints filed against the individual defendants.

94. Further, defendant City of New York was aware prior to the incident that the individual defendants (in continuation of its illegal custom, practice and/or policy) would stop, arrest and prosecute innocent individuals, based on pretexts and false evidence.

95. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct involving the individual defendants, placing the defendant City of New York on notice of the individual defendants' propensity to violate the rights of individuals.

96. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD were the moving force behind the constitutional violations suffered by plaintiffs as alleged herein.

97. The City's failure to act resulted in the violation of plaintiffs' constitutional rights as described herein.

FOURTEENTH CLAIM

(CONVERSION/TRESSPASS OF CHATTELS)

98. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

99. Plaintiffs had clear legal ownership to possession of the property described above and defendants converted plaintiffs' property by damaging and allowing items to be stolen.

100. Accordingly, defendants are liable to plaintiffs for damages that resulted from the conversion under New York State law.

FIFTEENTH CLAIM

(RESPONDEAT SUPERIOR)

101. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

102. The individual defendants were acting within the scope of their employment when they committed the above-described acts against plaintiffs, including falsely arresting, assaulting, battering, and maliciously prosecuting plaintiffs.

103. The City of New York is therefore vicariously liable to plaintiffs under New York State law for the aforesaid torts.

WHEREFORE, plaintiffs demand a jury trial and the following relief jointly and severally against the defendants; and demands judgment and compensatory damages, individually and/or collectively in an amount that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction as to the above-stated cause of action against all defendants; punitive damages in an amount to be determined at trial as and for the above-stated causes of action against the individual defendants; together with costs and disbursements of this action and legal fees pursuant to 42 U.S.C. § 1988.

DATED: Brooklyn, New York
December 28, 2016

MICHAEL O. HUESTON, ESQ.

Attorney for Plaintiffs

16 Court Street, Suite 3301

Brooklyn, New York 11241

(718) 246-2900

mhueston@nyc.rr.com

By:



MICHAEL O. HUESTON, ESQ.

ANDREW S. RENDEIRO, ESQ.

Attorney for Plaintiffs

16 Court Street, Suite 3301

Brooklyn, New York 11241

VERIFICATION

I, TERRANCE BURGESS, state under the oath, that I am the deponent in this action, and that I have read the Verified Complaint and that it is true to the knowledge of the deponent, except as to matters, alleged on information and belief, and that as to those matters I believe it to be true.



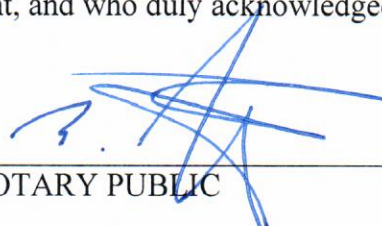
TERRANCE BURGESS

STATE OF NEW YORK)

: SS:

COUNTY OF KINGS)

On the 28th day of December, 2016, before me personally came and appeared TERRANCE BURGESS to me known and known to me to be the individual described in and who executed the foregoing instrument, and who duly acknowledged to me that he executed the same.

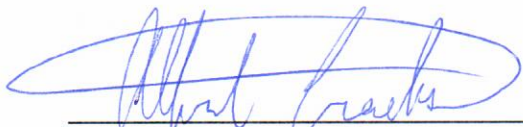


NOTARY PUBLIC

MICHAEL HUESTON
NOTARY PUBLIC, State of New York
No. 02HU6073603
Qualified in Kings County
Commission Expires April 22, 2018 18

VERIFICATION

I, ALFRED CROOKS, state under the oath, that I am the deponent in this action, and that I have read the Verified Complaint and that it is true to the knowledge of the deponent, except as to matters, alleged on information and belief, and that as to those matters I believe it to be true.



ALFRED CROOKS

STATE OF NEW YORK)

: ss:

COUNTY OF KINGS)

On the 28th day of December, 2016, before me personally came and appeared ALFRED CROOKS to me known and known to me to be the individual described in and who executed the foregoing instrument, and who duly acknowledged to me that he executed the same.



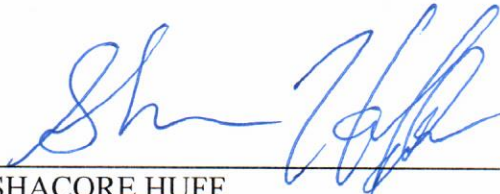
NOTARY PUBLIC

MICHAEL HUESTON
NOTARY PUBLIC, State of New York
No. 02HU6073603
Qualified in Kings County
Commission Expires April 22, 2018

/ 18

VERIFICATION

I, SHACORE HUFF, state under the oath, that I am the deponent in this action, and that I have read the Verified Complaint and that it is true to the knowledge of the deponent, except as to matters, alleged on information and belief, and that as to those matters I believe it to be true.



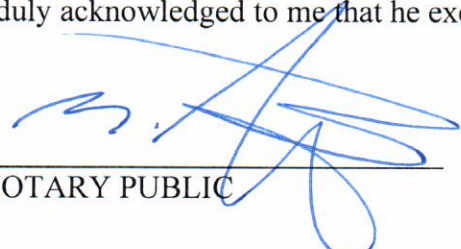
SHACORE HUFF

STATE OF NEW YORK)

: SS:

COUNTY OF KINGS)

On the 29th day of December, 2016, before me personally came and appeared SHACORE HUFF to me known and known to me to be the individual described in and who executed the foregoing instrument, and who duly acknowledged to me that he executed the same.



NOTARY PUBLIC

MICHAEL HUESTON
NOTARY PUBLIC, State of New York
No. 02HU6073603
Qualified in Kings County
Commission Expires April 22, 2018

VERIFICATION

I, DARYL MOORE, state under the oath, that I am the deponent in this action, and that I have read the Verified Complaint and that it is true to the knowledge of the deponent, except as to matters, alleged on information and belief, and that as to those matters I believe it to be true.



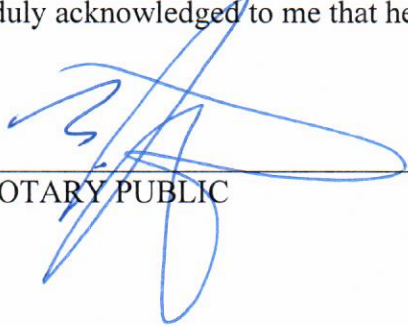
DARYL MOORE

STATE OF NEW YORK)

 : ss:

COUNTY OF KINGS)

On the 28th day of December, 2016, before me personally came and appeared DARYL MOORE to me known and known to me to be the individual described in and who executed the foregoing instrument, and who duly acknowledged to me that he executed the same.



NOTARY PUBLIC

MICHAEL HUESTON
NOTARY PUBLIC, State of New York
No. 02HU6073603
Qualified in Kings County
Commission Expires April 22, 2018

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

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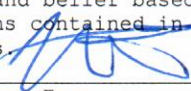
CITY OF NEW YORK, et al.,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

MICHAEL HUESTON, ESQ.
ANDREW S. RENDEIRO, ESQ.
Attorneys for Plaintiffs
16 Court St., Suite 3301
Brooklyn, New York 11241
(718) 246-2900

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney duly admitted to practice law in the State of New York, certifies that, upon information and belief based upon reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: 12/28/2016 Signature: 
Michael O. Hueston, Esq.

*Due and timely, service is hereby
admitted.*

Brooklyn, New York....., 2016

....., *Esq.*

Attorney for.....